

HOUSE No.**The Commonwealth of Massachusetts**

PRESENTED BY:

Bradley H. Jones, Jr. and Bruce E. Tarr*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing energy costs, transparency, and sustainability.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/13/2026</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>1/13/2026</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/13/2026</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/13/2026</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/13/2026</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>1/13/2026</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>1/13/2026</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>1/14/2026</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>1/15/2026</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/13/2026</i>
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>1/13/2026</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/13/2026</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/13/2026</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/13/2026</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>1/13/2026</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>1/13/2026</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/13/2026</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>1/13/2026</i>

<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/13/2026</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>1/13/2026</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/13/2026</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/13/2026</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>1/13/2026</i>
<i>Michael S. Chaisson</i>	<i>1st Bristol</i>	<i>1/13/2026</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/13/2026</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>2/10/2026</i>

HOUSE No.

By Representative Jones of North Reading and Senator Tarr, a joint petition (subject to Joint Rule 12) of Bradley H. Jones, Jr., Bruce E. Tarr and others relative to energy costs, transparency, and sustainability. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing energy costs, transparency, and sustainability.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (a) of section 19 of chapter 25 of the General Laws, as
2 appearing in the 2024 Official Edition, is hereby amended in lines 28 to 32 by striking out the
3 words “; provided, however, that when determining cost-effectiveness, the calculation of
4 program benefits shall include calculations of the social value of greenhouse gas emissions
5 reductions, except in the cases of conversions from fossil fuel heating and cooling to fossil fuel
6 heating and cooling”.

7 SECTION 2. Subsection (b) of section 19 of chapter 25 of the General Laws, as so
8 appearing, is hereby amended in lines 45 to 49 by striking out the words “provided, however,
9 that when determining cost-effectiveness, the calculation of program benefits shall include
10 calculations of the social value of greenhouse gas emissions reductions, except in the cases of
11 conversions from fossil fuel heating and cooling to fossil fuel heating and cooling”.

SECTION 3. Subsection (c) of section 19 of chapter 25 of the General Laws, as so appearing, is hereby amended in lines 67 to 71 by striking out the words “; provided, however, that when determining cost-effectiveness, the calculation of benefits shall include calculations of the social value of greenhouse gas emissions reductions, except in the cases of conversions from fossil fuel heating and cooling to fossil fuel heating and cooling”.

SECTION 4. Paragraph (2) of subsection (c) of section 21 of Chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following sentence:- The department shall not approve a plan if the plan’s total costs are greater than the total costs incurred for the 2022 to 2024 plan approved pursuant to this section, plus 6.25 per cent.

SECTION 5. Chapter 25 of the General Laws, as appearing in the 2024 official edition, is hereby amended by inserting after section 22 the following section:

Section 22A.

(a) Program administrators of energy savings programs under the collaborative otherwise known as “Mass Save,” including electric and gas distribution companies, shall submit a report, no later than February 1 of each year, detailing the following:

(i) operational and administrative costs of implementing energy savings programs, including but not limited to oversight, program management, and staffing;

(ii) consumer incentive costs to promote program participation;

(iii) total spending in residential programs administered, including a breakdown of spending for each program by geographic region, income, race, and ethnicity;

(iv) spending for each commercial program administered, including by region;

(v) total costs of rebates, contractor payments, installation, and any other relevant program implementation costs;

(vi) any other relevant costs deemed necessary by program administrators.

The report shall be submitted to the clerks of the house and senate and published on Mass Save's website.

(b) For the purposes of this section, the term "administrative expenses" shall mean overhead and labor costs in carrying out energy savings programs. Program administrators shall not exceed 10 per cent of the amount of funds allocated to energy savings programs for administrative expenses.

SECTION 6. Chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following sections:-

Section 24. The department of public utilities shall develop, implement, and maintain, a comprehensive, public-facing dashboard to display information relative to the cost and supply of energy for commercial and residential consumers in the commonwealth, provided that such information shall include but not be limited to: (i) investor owned transmission and distribution companies of electricity and natural gas, organized by region, (ii) current rates for natural gas and electricity for each such company, (iii) a clear and easily digestible explanation of the components of gas and electricity bills in the commonwealth, including regional variations, (iv) the sources of gas and electricity being delivered by such companies, (v) the date of the most recently approved rates for gas and electricity for each company, and (vi) a summary of the

proceedings by which those rates were approved, (vii) the duration of the currently approved rates and any anticipated new rate case filings, (viii) any available incentives or discounts to reduce the consumer cost of electricity and natural gas, (ix) average daily, monthly, and yearly consumption of gas and electricity, and any other relevant information.

Section 25. There shall be a special commission to study and recommend reforms to utility delivery fee structures, industry best practices, and cost-reduction measures for consumers in the Commonwealth. The commission shall analyze the impact of delivery fees on ratepayers, identify the primary cost drivers, and evaluate regulatory or market-based strategies to mitigate excessive charges while ensuring reliable service. The commission shall assess the impact of delivery fees on consumer costs, market competition, and energy affordability through a review of historical rate structures, policy comparisons with other states, stakeholder input, and financial modeling to identify potential reforms that could reduce costs while maintaining reliable service. Additionally, the commission shall review the effectiveness of existing regulations governing delivery fees, identify potential legislative or administrative adjustments to enhance pricing transparency and efficiency, any and all options for reducing such costs in the short and long terms, together with the impacts of such options on efforts to reduce carbon emissions pursuant to current statutory and regulatory obligations, and the impacts of such options on employment levels and the economy of the commonwealth. The commission shall consist of the house and senate chairs of the joint committee on telecommunications, utilities, and energy, who shall serve as co-chairs; the speaker of the house of representatives or a designee; the president of the senate or a designee; the house minority leader or a designee; the senate minority leader or a designee; the chair of the department of public utilities commission or their designee, the director of the Massachusetts Clean Energy Center, 10 members appointed by the governor, three of whom

77 shall represent electric transmission and distribution companies of electricity in the
78 commonwealth, of which one shall represent municipal light plants in the commonwealth, two
79 of whom shall have expertise in energy policy and represent consumers in the commonwealth,
80 one of whom shall represent large employers in the commonwealth, one of whom shall represent
81 small employers in the commonwealth, one member representing the New England Power
82 Generators Association, and one member representing the Independent Systems Operator for
83 New England, one member representing environmental organizations in the commonwealth, and
84 one member appointed by the attorney general of the commonwealth with expertise in energy
85 policy. Administrative support for the operations of the commission shall be provided by the
86 department of public utilities. The commission shall submit a report detailing its findings and
87 recommendations, including any proposed legislation, to the house and senate committees on
88 ways and means, the joint committee on telecommunications, utilities, and energy, and the clerks
89 of the house of representatives and senate no later than twelve months after the passage of this
90 legislation.”

91 SECTION 7. Section 3 of said chapter 25A, as so appearing, is hereby amended by
92 striking out the definition of “Qualified RPS resource” and inserting in place thereof the
93 following definition:-

94 “Qualified RPS resource”, a renewable energy generating source, as defined in
95 subsection (c) or subsection (d) of section 11F, that has: (i) installed a qualified energy storage
96 system at its facility; or (ii) commenced operation on or after January 1, 2019, provided,
97 however, that a qualified RPS resource that commenced operation prior to January 1, 2019 shall
98 be considered to have the commercial operation date of when the resource is co-located or
99 contractually paired with a qualified energy storage system that commenced operation after

January 1, 2019 and having a minimum nominal useful energy capacity of not less than 25 per cent of the nameplate power rating of the qualified RPS resource for 4 hours.

SECTION 8. Subsection (f) of section 11F of chapter 25A, as appearing in the 2024 Official Edition, is hereby amended by adding the following sentences:-

Not less than fifty per cent of alternative compliance payments made pursuant to this section shall be credited directly to electric ratepayers. The department of energy resources, in consultation with the department of public utilities, shall establish by regulation a mechanism to ensure that: (1) all such payments are returned to ratepayers in the service territory of the retail electricity supplier or municipal aggregator that submitted the payment, on a per kilowatt-hour basis or other equitable crediting method; and (2) the credits shall appear as bill reductions or refunds to ratepayers within 90 days of the close of the compliance year in which the payment was made. Any administrative costs associated with implementing this subsection shall be minimized and may be deducted from such payments prior to their return to ratepayers, provided that such deductions do not exceed reasonable expenses as approved by the department of public utilities.

SECTION 9. Section 4A of Chapter 40 of the General Laws as appearing in the 2024 Official Edition is hereby amended by striking the word “and” in line 8.

SECTION 10. Said section 4A of said chapter 40 is hereby further amended by adding in line 9 after the word “committee” the following words:- “, in a municipal light plant by the board or commission;”

SECTION 11. Said section 4A of said chapter 40 is hereby further amended by striking in line 28 the word “or” the first time it appears.

SECTION 12. Said section 4A of said chapter 40 is hereby further amended by striking the words “chapter 6A” in line 29, and inserting in place there of the following words:- “chapter 6A, or a municipal light plant established under chapter 164 or by special law.”

SECTION 13. Section 6 of chapter 62 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking the definition of “Real estate tax payment” as appearing in lines 391 through 410, inclusive, and inserting in place thereof the following:-

"Real estate tax payment", the real estate tax levied pursuant to chapter 59 on the taxpayer's residence and actually paid by the taxpayer during the taxable year, including water and sewer debt service charges assessed pursuant to subsection (n) of section 21C of chapter 59, exclusive of special assessments and delinquent interest, and less any abatement granted. For owners of residential property located in communities which have not exercised the option to assess water or sewer debt service charges pursuant to subsection (n) of section 21C of chapter 59, the real estate tax payment to be considered for purposes of calculating this credit shall also include 50 per cent of the owner's water and sewer charges actually paid in the taxable year for which the credit is sought, as well as 50 per cent of the owner's home energy utility bills actually paid in the taxable year for which the credit is sought. In the case of a multi-unit dwelling, a land area in excess of one acre or a multi-purpose building or land area, the real estate tax payment, including the water and sewer charges as applicable, shall constitute that portion of the real estate tax levied and paid, and that portion of applicable water and sewer charges actually paid, on the entire building or area, which corresponds to the portion of the area or building used and occupied as the residence of the taxpayer, in accordance with procedures established by the commissioner."

SECTION 14. Said section 6 of said chapter 62 is hereby further amended by striking the definition of “Rent constituting real estate tax payment” as appearing in lines 411 through 414, inclusive, and inserting in place thereof the following:–

"Rent constituting real estate tax payment", 25 per cent of the rent actually paid by the taxpayer, under a good faith rental agreement, for the right of occupancy of the residence during the taxable year or a portion thereof, as well as 50 per cent of the home energy utility bills actually paid by the taxpayer, under a good faith rental agreement, for the right of occupancy of the residence during the taxable year or a portion thereof."

SECTION 15. Said section 6 of said chapter 62 is hereby further amended by inserting after the definition of “Head of household” the following paragraph:–

"Real estate tax payment", the real estate tax levied pursuant to chapter 59 on the taxpayer's residence and actually paid by the taxpayer during the taxable year, including water and sewer debt service charges assessed pursuant to subsection (n) of section 21C of chapter 59, exclusive of special assessments and delinquent interest, and less any abatement granted. For owners of residential property located in communities which have not exercised the option to assess water or sewer debt service charges pursuant to subsection (n) of section 21C of chapter 59, the real estate tax payment to be considered for purposes of calculating this credit shall also include 50 per cent of the owner's water and sewer charges actually paid in the taxable year for which the credit is sought. In the case of a multi-unit dwelling, a land area in excess of one acre or a multi-purpose building or land area, the real estate tax payment, including the water and sewer charges as applicable, shall constitute that portion of the real estate tax levied and paid, and that portion of applicable water and sewer charges actually paid, on the entire building or

area, which corresponds to the portion of the area or building used and occupied as the residence of the taxpayer, in accordance with procedures established by the commissioner."

SECTION 16. Said section 6 of said chapter 62 is hereby further amended by inserting after the definition of "Real estate tax payment" the following paragraph:—

"Rent constituting real estate tax payment", 25 per cent of the rent actually paid by the taxpayer, under a good faith rental agreement, for the right of occupancy of the residence during the taxable year or a portion thereof."

SECTION 17. Notwithstanding section 142K of chapter 111 of the General Laws, as appearing in the 2024 Official Edition, the department of environmental protection shall not adopt or enforce regulations pertaining to motor-vehicle emissions standards based on California's duly promulgated motor-vehicle emissions standards for a period of five years from the effective date of this act.

SECTION 18. Section 1 of said chapter 164, as so appearing, is hereby further amended by inserting after the definition of "Petroleum products" the following definition:— "Portable solar generation device", a moveable photovoltaic generation device that: (i) has a maximum power output of not more than 1,200 watts; (ii) is designed to be connected to a building's electrical system through a standard 120-volt alternating current outlet; (iii) is intended primarily to offset part of the customer's electricity consumption; (iv) includes a device or feature that prevents the system from energizing the building's electrical system during a power outage; (v) meets the standards of the most recent version of the National Electrical Code; and (vi) is certified by Underwriters Laboratories or an equivalent nationally recognized testing laboratory

SECTION 19. Section 1A of chapter 164 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(h) Neither this section nor sections 1B to 1H, inclusive, shall preclude an electric company or a distribution company from competitively procuring sources of energy generation or energy transportation services, or a combination thereof, provided that a proposal for such generation or transportation services, or both, shall be:

(1) secured by a long-term contract executed by an electric company or distribution company with terms of 18 months or greater;

(2) subject to the review and approval of the department of public utilities under section ninety-four A, before becoming effective; and

(3) meets the following criteria, as determined by the department:

(a) is cost-effective to electric and gas ratepayers in the commonwealth over the contract term, taking into consideration potential economic and environmental benefits and opportunities

to allocate to, or share costs, on a fair and equitable basis with other states and populations

within other states that may benefit from such contracts, among other benefits;

(b) provides enhanced electricity reliability, system safety and energy security;

(c) contributes to the mitigation of winter electricity price spikes;

(d) provides energy price-suppression benefits;

(e) where feasible, creates and fosters economic development and quality jobs in the commonwealth; and

(f) includes benefits to environmental justice populations and low-income ratepayers in the commonwealth.

SECTION 20. Said chapter 164, as so appearing, is hereby amended by striking out section 1B, and inserting in place thereof the following section:-

Section 1B. (a) The department shall define service territories for each distribution company by March 1, 1998, based on the service territories actually served on July 1, 1997, and following to the extent possible municipal boundaries. After March 1, 1998, until terminated by effect of law or otherwise, the distribution company shall have the exclusive obligation to provide distribution service to all retail customers within its service territory, and no other person shall provide distribution service within such service territory without the written consent of such distribution company which shall be filed with the department and the clerk of the municipality so affected.

(b) Each distribution company shall provide its customers with default service and shall offer a default service rate to its customers who have chosen retail electricity service from a non utility affiliated generation company or supplier but who require electric service because of a failure of such company or the supplier to provide contracted service or who, for any reason, have never chosen or have stopped receiving such service. The distribution company shall procure supply for such service through competitive bidding or through such other process

approved by the department, including procurements of varying lengths and in combination with other distribution companies; provided, however, that standard default service rates, excluding time-varying rates and monthly variable service rates, for residential customers shall be changed no less than once every six months. Any department-approved provider of service, including an affiliate of a distribution company, shall be eligible to participate in the competitive bidding process. The department may require a separate mechanism for recovering certain charges, to be itemized separately on a customer bill, including, but not limited to, those in connection with the wholesale electric markets as administered by ISO New England, Inc. or federal tariffs on imports to such markets. In implementing the provisions of this section, the department shall ensure universal service for all ratepayers and sufficient funding to meet the need therefor.

(c) Notwithstanding the provisions of section 5D of chapter 25, the department and the department of energy resources shall have access to all information associated with the bids selected by the distribution company pursuant to the competitive bidding process in this section; provided, however that such information shall not be deemed to be a public record as defined in clause 26 of section 7 of chapter 4 and shall not be subject to demand for production under section 10 of chapter 66; provided, however, that aggregates of such information may be prepared and such aggregates shall be public records.

(d) The department is hereby authorized and directed to promulgate rules and regulations necessary to carry out the provisions of this section, including the procedure for default service procurement and governing a customer's ability to return to the default service after choosing retail access from a non-utility affiliated generation company.

SECTION 21. Said chapter 164, as so appearing, is hereby amended by inserting after section 1K the following section:-

Section 1L. (a) A licensed supplier other than a municipal aggregation supplier shall not provide electric supply service to a low-income residential customer. For the purpose of this section, “low-income residential customer” shall mean a customer actively enrolled in an R2 electric rate tariff.

(b) A licensed supplier offering electric service to a residential customer other than a municipal aggregation supplier:

(i) may not automatically renew a residential customer’s fixed-rate contract to a variable rate contract.

(ii) may automatically renew a residential customer’s contract provided that:

(1) the customer provides affirmative consent to automatic renewal at the time of enrollment or anytime thereafter; and

(2) The supplier provides renewal notices prior to contract expiration as follows: (i) at least 60 days prior; (ii) at least 30 days prior—clearly disclosing the renewal rate, term, and opt out method; and (iii) a final reminder at least 15 days prior.

(iii) may not offer to a residential customer a variable rate other than a rate that adjusts for seasonal variation more than twice in a single year or a time-of-use rate that establishes different rates for periods within a single day, or as otherwise approved by the department; (iv) shall, for all in-person sales and telephonic sales, conduct third-party verification confirming the customer’s affirmative and informed consent to the terms of enrollment; (v) may not impose on a

residential customer a fee for cancellation or early termination of an electricity supply agreement; and (vi) offer a voluntary renewable or green energy product, provided that:

(1) The supplier discloses to the residential customer in plain language and prior to enrollment, that the customer will not receive electricity directly from renewable generating units and that the supplier will acquire and retire renewable energy certificates ("RECs") or other eligible clean energy attributes in an amount equal to the customer's usage.

(2) The disclosure identifies the resource type(s) and geographic origin(s) of the RECs to be retired. If such information is not available at the time of enrollment, the supplier shall disclose the resource type(s) and geographic origin(s) of RECs retired for a substantially similar product over the prior twelve (12) months, and provide the specific product's REC details to the residential customer within sixty (60) days after the first billing cycle.

(3) The RECs are sourced from any certificate tracking system that assigns unique serial numbers, records issuance, transfer, and retirement, and prevents double counting.

(4) The supplier annually reports to the department the amount, type, and location of clean or renewable attributes retired on behalf of residential customers, and the percentage retired in excess of applicable portfolio requirements.

(c) The department shall establish and maintain a public website for residential customers to compare available retail electricity supply products. Suppliers must list at least one product available to residential customers on said website. The department shall ensure that the website includes, but is not limited to, all of the following information: (i) the current, and where possible, future default service rate available to a customer pursuant to section 1B; (ii) the default supply rate of any municipal aggregation offering available to a customer pursuant to section

134; (iii) the contract term for all products listed; (iv) the percentage of renewable or clean energy content included in the product, including information on the source or location of such content, as determined by the department; (v) all additional products and services included as part of the product; and (vi) the estimated monthly cost to the customer. The website shall allow for products to be sorted and compared to each other.

(d) No less than quarterly, suppliers shall provide to the department: (i) a list detailing each rate the supplier charged to residential retail customers in the last quarter; and (ii) the number of low-income and non-low-income residential retail customers charged each rate included in such list by rate class. The department shall publish average rates charged to customer classes and the aggregate number of customers served on the department's website. Any information regarding competitive supply that the department makes available to the public shall be presented only in aggregated or anonymized form and shall not include supplier specific pricing, offers, or terms. Supplier submitted pricing and other commercially sensitive information shall be treated as confidential and used solely for regulatory oversight and market monitoring.

(e) No less than annually, suppliers shall provide data to the department concerning any clean or renewable energy attributes retired in connection with the generation service provided to individual residential retail customers. Such data shall include the geographic location and fuel type of each such attribute, and the percentage of the supply purchased in excess of the supplier's annual obligations under the clean and renewable energy portfolio standards established by the department of environmental protection and department of energy resources, respectively. The department shall publish this information from each supplier on its website. Any information regarding competitive supply that the department makes available to the public shall be

presented only in aggregated or anonymized form and shall not include supplier specific pricing, offers, or terms. Supplier submitted pricing and other commercially sensitive information shall be treated as confidential and used solely for regulatory oversight and market monitoring.

(f) A licensed supplier shall provide written notice to the department prior to any assignment or transfer of their supplier license. Notice shall be provided to the department at least thirty days prior to the effective date of the proposed assignment or transfer. The department may, upon its review of such notice, require certain conditions or deny assignment or transfer of the license.

(g) No less than quarterly, the department shall publish each supplier's and electric and gas distribution companies' complaint data, sourced from complaints made to the department as well as those made to the attorney general, as provided to the department annually, on the department's website.

(h) Notwithstanding any general or special law to the contrary, nothing in this Section shall be construed to apply to any entity organizing or administering a program pursuant to section 137 of chapter 164.

SECTION 22. Section 47B of said chapter 164, as so appearing, is hereby amended by adding the following paragraph at the end thereof:- Any municipality acting by and through its municipal light board may provide services and assistance to any municipal or state utility, tribal utility as defined in 25 CFR § 169.2, or any other publicly-owned or operated utility, whether located inside or outside of the Commonwealth, and governmental units as defined in section 4A of chapter 40, to construct, install, alter, operate, maintain or repair utility poles and conduit, wires, cables, and equipment, and streetlights and traffic signals to the same extent such

municipality acting by and through its municipal light board may provide such services within its service territory. Any such municipality acting by and through its municipal light board may sell, rent, or lease merchandise, equipment, fixtures, utensils and chattels of any description related to the provision of such services. Any employee providing such services entered into between the municipality acting by and through its municipal light board and such other public entity shall be subject to the provisions of chapter thirty-two, sections one to twenty-eight, inclusive, and shall have the same rights and privileges thereunder, as if performing the same duties within the scope of his employment including voluntary assignments.

SECTION 23. Section 69I of said chapter 164, as so appearing, is hereby amended by adding the following paragraph at the end thereof:- The department is authorized to require any electric or gas company to satisfy any or all provisions of this section upon a determination, after notice and a hearing, that such provisions are applicable for an electric or gas company to demonstrate that energy supply procurements under section ninety-four A, should be approved by the department to ensure a necessary energy supply for the commonwealth with a minimum impact on the environment at the lowest possible cost.

SECTION 24. Section 94A of said chapter 164, as so appearing, is hereby amended by striking out, in line 2, the words “gas or electricity”, and by inserting in place thereof the following words:- “energy supply, including gas, electricity, transmission, transportation or a combination thereof,”

SECTION 25. Section 94A of said chapter 164, as so appearing, is hereby amended by striking out, in line 3, the words “one year”, and by inserting in place thereof the following words:- “18 months”

358 SECTION 26. Said section 94A is hereby further amended by adding in line 4, the words
359 “for energy supply” after the words “unless such contract”

360 SECTION 27. Said section 94A is hereby further amended by striking out, in lines 5, 8,
361 10, 13 and 16, the words “gas or electricity”, and by inserting in place thereof the words “energy
362 supply”

363 SECTION 28. Section 133 of said Chapter 164, as so appearing, is hereby amended by
364 inserting after the word “plant”, in line 12, the following sentence: -

365 “Any municipal lighting plant providing emergency mutual aid may sell, rent, or lease
366 equipment, fixtures, and goods of any description related to the provision of emergency mutual
367 aid”

368 Said section 133 is hereby further amended by adding at the end of line 12 the following
369 sentence:-

370 “Any employee of a municipal lighting plant providing emergency mutual aid, shall be
371 covered by the provisions of chapter thirty-two, sections one to twenty-eight, inclusive, as may
372 be amended from time to time, and shall have the same rights and privileges thereunder, as if
373 performing such duties within the scope of his employment including voluntary assignments
374 authorized by the employer.”

375 Said section 133 is hereby further amended by adding in line 27, the word “utility”, the
376 following words:-“or its employees”

377 SECTION 29. Subsection (f) of section 139 of chapter 164, as appearing in the 2024
378 Official Edition, is hereby amended by striking out the third sentence.

379 SECTION 30. Subsection (i) of said section 139 of said chapter 164, as so appearing, is
380 hereby amended by striking out, in lines 137 to 138, inclusive, and lines 145 to 147, inclusive,
381 each time they appear, the words “that are not net metering facilities of a municipality or other
382 governmental entity under subsection (f)”.

383 SECTION 31. Said subsection (i) of said section 139 of said chapter 164, as so appearing,
384 is hereby amended by striking out the figure “25”, each time it appears, and inserting in place
385 there of the following figure:- “35”.

386 SECTION 32. Said chapter 164, as so appearing, is hereby amended by adding after
387 section 143 the following section:- Section 143A. (a) A portable solar generation device shall be
388 exempt from: (i) the interconnection requirements described in this chapter; (ii) requirements to
389 enter into an interconnection agreement; and (iii) the net metering program requirements under
390 this chapter. (b) An electric company may not require a customer using a portable solar
391 generation device to: (i) obtain the electrical corporation’s approval before installing or using the
392 system; (ii) pay any fee or charge related to the system; or (iii) install any additional controls or
393 equipment beyond what is integrated into the system. An electric company shall not be liable for
394 any damage or injury caused by a portable solar generation device.

395 SECTION 33. Sections 34 and 112 of chapter 8 of the Acts of 2021 are hereby repealed.

396 SECTION 34. Chapter 503 of the acts of 1982 is hereby repealed.

397 SECTION 35. Subsection (d) of section 81 of chapter 179 of the acts of 2022 is hereby
398 amended by striking out paragraph (5), as appearing in section 103 of chapter 239 of the acts of
399 2024, and inserting in place thereof the following paragraph:-

(5) Not later than 12 months after the completion of each assessment, each electric distribution company may submit to the department of public utilities its plan and an application to revise its rates to account for the additional distribution infrastructure included in the plan pursuant to paragraph (4). The application shall include: (i) testimony that explains how the application is consistent with the plan pursuant to said paragraph (4); (ii) an explanation of the need for each distribution infrastructure investment; (iii) supporting documentation demonstrating that the actual or estimated costs for each distribution infrastructure investment are reasonable; and (iv) the actual or estimated in-service date of the distribution infrastructure investment. Such application shall be preliminarily approved by the department of public utilities not later than 6 months after submission; provided, however, that the requested rate revision is consistent with the department's practices and incremental costs are not otherwise accounted for in the electric distribution company's existing rates. The department's review of such application shall not be construed as a prudence review. No rate revision shall take effect unless and until the department issues a written decision approving the application within 6 months after submission.

SECTION 36. There shall be established a special commission to study the oversight, operating structure, financing, and administration of Mass Save and its programs. The commission shall be comprised of the following members or their designees: the chairs of the joint committee on telecommunications, utilities and energy, who shall serve as the co-chairs; the chairs of the joint committee on environment and natural resources; the chairs of the joint committee on consumer protection and professional licensure; the speaker of the house; the senate president; the minority leader of the senate; the minority leader of the house; the attorney general; the secretary of the executive office of energy and environmental affairs; the commissioner of the department of energy resources; the chair of the department of public

423 utilities; the secretary of the executive office of economic development; the state director of
424 AARP Massachusetts; and the president of the Environmental League of Massachusetts.

425 The commission shall include in its review the following, including but not limited to:

426 (i) the current operating structure of Mass Save;

427 (ii) the implications of Mass Save's programs being administered by utility companies;

428 (iii) the potential benefits of transferring the operations of Mass Save to an independent
429 entity without a financial interest in energy consumption;

430 (iv) the costs of operating Mass Save and its programming, including administrative
431 costs, customer incentives, and benefits administration;

432 (v) the effectiveness of the programs administered by Mass Save, including a breakdown
433 of energy and cost savings, and participation in the program by demographic, age, and income;

434 (vi) the current data reporting requirements and reporting structure imposed on Mass
435 Save and its programming;

436 (vii) the cost-effectiveness of the administration of the program;

437 (viii) a review of comparable programs in other states, and how these programs are
438 operated and funded;

439 (ix) the feasibility of transferring the operations of Mass Save and the administration of
440 its programs to another entity, including which types of entities have the capacity and are best
441 suited to do so.

442 The commission shall hold at least 4 public listening sessions in various regions of the
443 commonwealth to solicit feedback from consumers, commercial groups, advocacy groups, state
444 agencies, industry experts and stakeholders, and any other groups deemed necessary by the
445 commission.

446 The commission shall submit its findings and recommendations to the house and senate
447 committees on ways and means, the joint committee on telecommunications, utilities and energy,
448 and the clerks of the house and senate within 12 months of the passage of this act.

449 SECTION 37. (a) Notwithstanding any general or special law, rule or regulation to the
450 contrary, high voltage transmission line installations on highways with full control of access
451 shall be permitted and may be constructed, placed, or maintained across any public right of way
452 or along any highway, freeway, federally aided state highway, controlled access highway,
453 interstate highway, or roadway, except as deemed necessary by the secretary of transportation to
454 protect public safety or ensure the proper function of the highway. The utility owner shall in each
455 case submit an application to the energy facilities siting board and department of transportation
456 that demonstrates: (i) the accommodation will not adversely affect the safety, durability,
457 construction, traffic operations, maintenance, or service life of the highway, (ii) the
458 accommodation will not unduly interfere with or impair the present use or future expansion of
459 the highway; (iii) access for constructing and servicing utility facility will not adversely affect
460 safety and traffic operations or damage any highway facility; (iv) consideration is given to
461 planned future expansion of the highway; and (vi) consideration is given to ensuring the
462 accommodation meets the criteria pursuant to subsection (b).

When a permissible route along a highway corridor has been identified by the department of transportation and the utility owner or developer, a constructability, access and maintenance report shall be prepared by the utility owner or developer. The department of transportation shall engage in consultation with the utility owner or developer in the creation of the report and shall include the terms and conditions for building the co-location project. Included within the report shall be an agreed upon timeframe for which there will not be any request by the department of transportation for relocation of the transmission line. If the department of transportation needs a transmission line in its right-of-way relocated, it shall give the utility a 10-year advance notice. The report must be approved by both parties prior to the department of transportation issuing a permit for use of the highway right-of-way.

In all cases of new longitudinal utility accommodations, whether for highways or non-highways, the utility owner shall obtain a highway access permit and install the utility facility in accordance with the approved permit.

If the energy facilities siting board denies a high voltage electric line co-location request, the reasons for the denial must be submitted to the department of transportation, the department of public utilities, and made publicly available, within 90 days of the denial.

(b) In the siting of new electric transmission facilities, including high-voltage transmission lines, it is the policy of this state that the following corridors shall be considered in the following order of priority: (i) Existing utility corridors, (ii) highway (interstate, freeway and state highways) and railroad corridors; and (iii) new corridors.

Permitting on priority corridors shall be done to the greatest extent feasible that is consistent with but limited to the following criteria: (i) economic and engineering considerations,

(ii) reliability of the electric system, (iii) public safety, (iv) and the protection of the environment.

SECTION 38. The Secretary of Energy and Environmental Affairs, in consultation with the Massachusetts Clean Energy Center, is hereby authorized and directed to develop and implement the framework of a regional compact among the states of Massachusetts, New Hampshire, Maine, Vermont, and Connecticut for the purposes of research and development regarding energy produced by nuclear fusion. Said compact shall include, but not be limited to, the mission of the compact, specific focus areas, personnel and financial requirements, and other elements necessary to the operation of the compact.

The compact shall include the development and implementation of a comprehensive plan to obtain all necessary regulatory approvals for, finance, and operate, one or more nuclear fusion reactors for research, provided that the costs of such actions shall be addressed by a formula to facilitate fair contributions from each member state, together with any gifts or grants, including but not limited to those provided by the United States Department of Energy. Such plan may include recommendations for regulatory or statutory measures to assess regulated energy companies for costs associated with the compact.

The secretary shall establish a Fusion Research Council to provide guidance in carrying out the provisions of this act. Said council shall consist of the secretary, who shall serve as its chair, the executive director of the clean energy center, the secretary of economic development or a designee, the commissioner of the department of environmental protection or a designee, and 7 members appointed by the governor, whom shall include individuals representing 3 institutions of higher learning in the commonwealth, 1 of which shall be the University of

507 Massachusetts and 1 of which shall be the Massachusetts Institute of Technology, 1 member
508 representing employers in the commonwealth, 1 member representing organized labor in the
509 commonwealth, 1 member representing an organization engaged in independent nuclear energy
510 research in the commonwealth, and 1 member representing the taxpayers of the commonwealth.
511 The council shall convene as deemed necessary by its chair, but not less than quarterly.

512 The secretary, in accordance with the plan developed pursuant to this act, and subject to
513 the approval of the governor and the great and general court, shall solicit member states for
514 participation in the compact, provided that such states shall designate representatives according
515 to the terms of the compact. Representatives shall serve for a term, and under such conditions, as
516 the state being represented shall establish.

517 The secretary shall submit the plan developed pursuant to section 1 in the form of
518 legislation filed with the clerk of the Senate not later than 12 months following the passage of
519 this act, the passage of which shall constitute the approval prescribed in this section.

520 The secretary shall file reports detailing the progress made in the development of the
521 compact, any costs estimates for its implementation, and any recommendations for legislative or
522 regulatory actions to advance the mission of the compact, not less than every three months, with
523 the clerks of the House and Senate, the Joint Committee on Telecommunications and Energy,
524 and the House and Senate Committees on Ways and Means.

525 SECTION 39. There shall be a special commission to analyze the costs of natural gas in
526 the commonwealth, and to make recommendations for measures to contain and reduce those
527 costs for residential and commercial consumers.

528 The commission shall consist of the chair of the department of public utilities
529 commission, who shall serve as it's chair, the director of the Massachusetts Clean Energy Center,
530 10 members appointed by the governor, three of whom shall represent natural gas transmission
531 and distribution companies, one of which one shall represent municipalities in the
532 commonwealth, two of whom shall have expertise in energy policy and represent consumers in
533 the commonwealth, one of whom shall represent large employers in the commonwealth, one of
534 whom shall represent small employers in the commonwealth, one member representing the
535 North East Gas Association, and one member representing environmental organizations in the
536 commonwealth, and one member appointed by the attorney general of the commonwealth with
537 expertise in energy policy. Administrative support for the operations of the commission shall be
538 provided by the department of public utilities.

539 Said commission shall evaluate all of the factors contributing to the cost of natural gas for
540 residential and commercial consumers in the commonwealth, and any and all options for
541 reducing such costs in the short and long terms, together with the impacts of such options on
542 efforts to reduce carbon emissions pursuant to current statutory and regulatory obligations, and
543 the impacts of such options on employment levels and the economy of the commonwealth,
544 provided that such commission shall conduct not less than three public hearings which shall
545 accommodate remote electronic participation, provided further that the commission shall file a
546 report detailing its findings, together with any recommendations, with the clerks of the House
547 and Senate, and the Joint Committee on Telecommunications, Utilities, and Energy not later than
548 December 31, 2026, provided further that the commission may file an interim report prior to
549 such date.

550 SECTION 40. Section 8 is hereby repealed.

551 SECTION 41. Sections 13 and 14 shall be effective for the tax year beginning on January
552 1, 2026.

553 SECTION 42. Sections 13 and 14 are hereby repealed.

554 SECTION 43. Sections 15, 16, 40 and 42 shall take effect on January 1, 2029.